IN THE NATIONAL COMPANY LAW TRIBUNAL,
SINGLE BENCH, CHENNAI

CA/160 & 161/CAA/2019

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

Between

M/s. CDM Smith Global Services Private Limited
(Transferor Company)

And

M/s. CDM Smith Engineering & Design Services India Private Limited
(Transferee Company)

Order delivered on 1st March, 2019

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s): Mr. I.B. Harikrishna, PCS

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration are Application Nos. CA/160 & 161/CAA/2019 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening, holding and conducting of the meeting of Equity Shareholders of the Transferor and Transferee Company.

2. **M/s. CDM Smith Global Services Private Limited:**

i. The Transferor Company viz., M/s. CDM Smith Global Services Private Limited has 2 (Two) Equity Shareholders. The list of Equity Shareholders is placed at page 76 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 77-88 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Transferor Company is allowed to be dispensed with.

ii. There are no Secured and Unsecured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 75 of the typed set filed with the Application.

3. **M/s. CDM Smith Engineering & Design Services India Private Limited:-**

i. The Transferee Company viz., M/s. CDM Smith Engineering & Design Services India Private Limited, has 2 (Two) Equity Shareholders. The list of Equity Shareholders is placed at page 68 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 69-80 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Transferee Company is allowed to be dispensed with.

ii. There are no Secured and Unsecured Creditors in relation to the Transferee Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 67 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC concerned, Income Tax Authorities including the Assessing Officer of the I.T. Circle, Reserve Bank of India (RBI), OL in relation to the Transferor Company with the direction to appoint Chartered Accountants on his own for filing report. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery. The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with supporting affidavit to this Bench along with Company Petition(s).

6. The Applicant Companies are directed to effect publication of notice separately in the newspapers one in English "Business Standard" (Tamilnadu Edition) and another in vernacular "Maalai Chuddar" (Tamilnadu Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30 + 2 days before filing the Company Petition(s). The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at their Registered Office. The Registry is also directed to display the notice on the notice board of this Bench.

7. Accordingly, the Applications are **allowed**. The Applicant Companies are directed to present the Petition on or before 26.04.2019.

[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

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